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NEWSPAPER

9th November, 2017

ITEM WISE EDITORIALS

45th WEEK



KENYA, AFRICA & DEMOCRACIES

UPSC CSE – GS II

GS II... EFFECT OF POLICIES AND POLITICS OF DEVELOPING COUNTRIES ON INDIA'S INTERESTS.



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NEWSPAPER EDITORIALS ... DISCUSSION

9th NOVEMBER, 2017

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Uncertain in Kenya

A legal challenge to the presidential election could extend the political crisis

With a petition filed in Kenya's Supreme Court against the October 26 rerun of the presidential election, the country risks an intensification of political turmoil. The challenge is the second since the initial elections in August, which were overturned on grounds of alleged discrepancies in tabulation at the polling stations and the computer systems. That unprecedented ruling in September was widely hailed as an exemplar of judicial independence. Since then, President Uhuru Kenyatta has rammed through legislation that circumscribes the authority of the electoral mechanism and legal scrutiny of polls. The sense of intimidation was palpable when most of the judges failed to show up to hear a plea for the postponement of the vote. The outcome of the latest legal challenge is therefore far from certain. If the judges again decide not to uphold the latest victory for the incumbent, the absence of a genuine contest could prove to be a critical factor. The opposition leader, Raila Odinga, had withdrawn from the second race in protest against the new legislation and the lack of material improvement on the ground. Days before the October election, the election commission lost the services of top officials, with one fleeing the country saying she feared for her life. Such a turn of events came as a chilling reminder of the mysterious death of a high functionary of the electoral body just before the elections in August. Moreover, there was considerable scepticism over the credibility of the October vote, as a large-scale revamp of the electoral system was seen to be impossible within that timeframe.

This is why there is speculation that the court may see merit in the petitioner's claim that the polls were anything but free and fair. Both Mr. Kenyatta and Mr. Odinga bear much moral responsibility for the current stalemate and the violence. It is time they negotiated a lasting settlement to restore credibility to Kenya's democracy. That requires them, especially Mr. Kenyatta, to play by the rules laid down under the 2010 constitution, which provides for greater devolution of powers. Above all, there needs to be an end to the near-monopoly of power enjoyed by the Kikuyu and the Kalenjin ethnic communities since the country's freedom from colonial rule. Memories of the killing of hundreds in the aftermath of the 2007 elections should underscore the urgency of bringing the current fluid situation within control. For its part, the African Union must exert political pressure on Kenya's two veteran politicians to prevent the escalation of the crisis beyond Kenya's borders. This week the government lowered the forecast for GDP growth to below 5%, with analysts blaming the political crisis for the negative sentiment. The social cost of this upheaval would be incalculable. Strengthening the election mechanism against political interference would be an important first step.

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3 Uncertain in Kenya

THE HINDU
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North
Atlantic
Ocean

Mediterranean Sea

SYRIA

IRAQ

IRAN

AFGHANISTAN

PAKISTAN

NEPAL

INDIA

Bay of Bengal

Arabian Sea

Gulf of Oman

Persian Gulf

YEMEN

OMAN

SAUDI ARABIA

EGYPT

SUDAN

LIBYA

ALGERIA

MOROCCO

MAURITANIA

MALI

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ETHIOPIA

SOMALIA

KENYA

South
Atlantic
Ocean

Indian
Ocean

SOUTH
AFRICA

NAMIBIA

MOZAMBIQUE

MADAGASCAR

KENYA...ELECTIONS AND CONTROVERSIES



UHURU KENYATTA



RAILA ODINGA

The Nation has more than 40 ethnic groups. Mr. Kenyatta is Kikuyu, the biggest of Kenya's tribes.

- 1 More than 1000 people were killed in post election violence in 2008 drawing international condemnation.
- 2 The 2013 Presidential elections was marred by clashes.
- 3 In 2017 initially, Presidential elections were held in August. Subsequently, the Supreme Court nullified the elections citing irregularities and ordered a new poll within 60 days.
- 4 This is a rare move in Africa, where Judicial power is often seen as an extension of the Government.

KENYA...THE PRESENT SCENARIO

- 1** President Uhuru Kenyatta took legislative route to circumscribe the authority of the electoral mechanism and legal scrutiny of the polls.
- 2** Most important aspect is, most of the judges failed to show up to hear a plea for the postponement of the vote.
- 3** The Opposition leader, Raila Odinga withdrawn from the race in protest against the new legislation.
- 4** Days before the October elections, the Election Commission lost the services of top officials, with one fleeing the country.
- 5** Moreover, there was a mysterious death of a election functionary, just before the elections.



UHURU KENYATTA

WHAT IS THE NEED OF THE HOUR?

- 1** The immediate need of the hour is to restore credibility to Kenya's democracy.
- 2** Uhuru Kenyatta to play by the rules laid down under the 2010 Constitution, which provides for greater devolution of powers.
- 3** There needs to be an end to the near-monopoly of power enjoyed by the Kikuyu and the Kalenjin ethnic communities, since the country's freedom from colonial rule.

- 4** African Union must exert political pressure on Kenya's two veteran politicians to prevent the escalation of the crisis beyond Kenya's borders.

The Government lowered the forecast for GDP growth to below 5% and this is probably due to the negative sentiment because of political crisis.

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